



POTA VS UAPA: THE UNRESOLVED DEBATE

ISSUE	POTA *	UAPA AND NIA **
DEFINITION OF TERRORISM ACT	POTA made a major change to the definition by substituting 'with intent to overawe the government' with the phrase 'with intent to threaten the unity, integrity, security or sovereignty of India'	Widening the scope further, the definition now includes offences related to radioactive or nuclear substances and even attempts to overawe state or public functionaries
POWERS OF DETENTION	Chargesheet needs to be filed in 180 days. Hence accused can be held without bail for that period	Chargesheet needs to be filed in 180 days but court can limit detention to 90 days
PRESUMPTION	Court to draw adverse inference if arms recovered from the accused or his fingerprints are found at the site of the incident	More stringent as the UAPA directs the court to presume the accused guilty in these cases unless proved otherwise
CONFESSION	Confessions before a police officer would be admissible as evidence	Confessions before a police officer would not be admissible as evidence

* Prevention Of Terrorists Activities Act ** Unlawful Activities (Prevention) Act

suspects before filing charges, from 90 days to 180. "Security concerns should never be used to jeopardise people's basic human rights," says Madhu Malhotra, Asia Pacific Programme Deputy Director at Amnesty International.

Though the Government's decision to make confessions made to police as admissible has come under stiff resistance from the BJP, the rights activists say it is a move in the right direction. The opponents of this move argue that while the Government is using Kasab's confessions and telephone intercepts as an evidence to implicate Pakistan, his confessions are not valid in Indian courts.

The flaws within the Indian police system allow torture to routinely happen and it often casts doubt on the confessions made voluntarily. In the UK, where confessions to police are admissible provided they are not coerced or induced, the question of admissibility is de-

Action Plan

CONFESSIONS made before a police officer, SP or above, should be admissible as evidence in court with adequate safeguards and oversight committee

NO presidential pardon for those awarded death penalty in terror cases

GOVERNMENT should ensure that while implementing anti-terror laws the principles of federal polity are not infringed upon

THE NIA should have been armed with powers of both the CBI and the IB, something along the lines of FBI in the US

ANTI-TERROR law should have provisions for monitoring telephones and e-mails, regulating financial transactions to cut off illegal inflow of funds for terrorist activities

PROVISIONS have to be backed by a comprehensive witness protection programme to ensure safety and security of the witnesses

cided in a separate 'mini trial' within trial. Only the confessions that fall under elaborate judicial principles are admissible in the trial. Even in the US, any confessions made in violation of procedure and made under duress are not admissible.

The danger associated with allowing police concession is that it incentivises police complacency and bad investigation. The confessional statement often becomes the piece de resistance of the police case and works as an excuse to ignore the need for collecting other evidence. This calls for a need to extensively reform the police force which relies on scientific investigation and evidence collection methods instead of coerced confessional statements which can be retracted in the court of law. If we make steady progress in police reforms, we can effortlessly incorporate provisions allowing confessions made in custody as evidence under an oversight mechanism.